

APPENDIX A – SUBMISSION FORM

A.1 Respondent Information

Please fill out the following form, naming one person to be the contact for this RSO response and for any clarifications or communication that might be necessary.	
Full Legal Name of Respondent: <i>[Organization's legal name]</i>	
Any Other Relevant Name under which Respondent Carries on Business:	
Street Address:	
City, Province/State:	
Postal Code / Zip Code:	
Phone Number:	
Company Website (if any):	
Respondent Contact Name and Title:	
Respondent Contact Phone:	
Respondent Contact Email:	
Nova Scotia Registry of Joint Stock Number (Leave blank if NOT applicable):	
HST / GST Registration Number (Leave blank if NOT applicable):	
SIN # (only required if you do not have an HST/GST or NSRST number):	

Select the Service Function Category in which you are applying:

- ☐ People Services, Professional Development, Training & Facilitation
- ☐ FDI Lead Generation, B2B Matchmaking, In-Market Support, & Business Advisory Services
- ☐ Marketing & Communication Services
- ☐ Information Technology Goods & Services
- ☐ Research & Analysis
- ☐ Professional Engineering, General Contracting, & Maintenance Services
- ☐ Legal & Other Professional Services

A.2 Acknowledgment of Non-Binding Procurement Process

The Respondent acknowledges that this RSO process will be governed by the terms and conditions of the RSO and that, among other things, such terms and conditions confirm that this procurement process does

not constitute a formal, legally binding bidding process (and for greater certainty, does not give rise to a Contract A bidding process contract) and that no legal relationship or obligation regarding the procurement of any good or service shall be created between Invest Nova Scotia and the Respondent unless and until Invest Nova Scotia and the Respondent execute a written agreement for the Deliverables pursuant to a subsequent invitational second-stage procurement process.

A.3 Ability to Provide Deliverables

The Respondent has carefully examined the RSO documents and has a clear and comprehensive knowledge of the Deliverables required. The Respondent represents and warrants its ability to provide the Deliverables in accordance with the requirements of the RSO.

A.4 Mandatory Submission Requirements

The Respondent encloses as part of the response the mandatory submission requirements set out below:

FORM	INITIAL BELOW TO CONFIRM ENCLOSURE
Appendix A - Submission Form	

A.5 Addenda

The Respondent is deemed to have read and taken into account all addenda issued by Invest Nova Scotia.

A.6 No Prohibited Conduct

The Respondent declares that it has not engaged in any conduct prohibited by this RSO.

A.7 Conflict of Interest

For the purposes of this section, the term “Conflict of Interest” includes, but is not limited to, any situation or circumstance where:

- (a) in relation to the RSO process, the Respondent has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including but not limited to (i) having, or having access to, confidential information of Invest Nova Scotia in the preparation of its response that is not available to other Respondents; (ii) communicating with any person with a view to influencing preferred treatment in the RSO process (including but not limited to the lobbying of decision makers involved in the RSO process); or (iii) engaging in conduct that compromises, or could be seen to compromise, the integrity of the open and competitive RSO process or render that process non-competitive or unfair; or
- (b) in relation to the performance of its contractual obligations under a contract for the Deliverables, the Respondent’s other commitments, relationships or financial interests (i) could, or could be seen to, exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgement, or (ii) could, or could be seen to, compromise, impair or be incompatible with the effective performance of its contractual obligations.

Respondents should disclose the names and all pertinent details of all individuals (employees, advisors, or individuals acting in any other capacity) who (a) participated in the preparation of the response; **AND** (b) were employees of Invest Nova Scotia within twelve (12) months prior to the Submission Deadline.

If the box below is left blank, the Respondent will be deemed to declare that (a) there was no Conflict of Interest in preparing its response; and (b) there is no foreseeable Conflict of Interest in performing the contractual obligations contemplated in the RSO.

Otherwise, if the statement below applies, check the box YES.

☐ YES - The Respondent declares that there is an actual or potential Conflict of Interest relating to the preparation of its response, and/or the Respondent foresees an actual or potential Conflict of Interest in performing the contractual obligations contemplated in the RSO.

If the Respondent declares an actual or potential Conflict of Interest by marking the box YES, the Respondent must set out below details of the actual or potential Conflict of Interest:

A.8 Disclosure of Information

The Respondent hereby agrees that any information provided in this response, even if it is identified as being supplied in confidence, may be disclosed where required by law or by order of a court or tribunal. The Respondent hereby consents to the disclosure, on a confidential basis, of this response by Invest Nova Scotia to the advisors retained by Invest Nova Scotia to advise or assist with the RSO process, including with respect to the evaluation of this response.

You agree you are signing this document electronically and agree that your electronic signature is the legal equivalent of your manual signature and that no further certification or third-party verification of your electronic signature is required in order to be legally binding.

Name of Respondent Representative

Title of Respondent Representative

Name of Organization

Date

I have the authority to bind the Respondent.